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April 7, 2026

ENGROSSED HOUSE
BILL NO. 3497

By: Duel of the House

and

Gollihare of the Senate

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 1053, as amended by Section 2, Chapter 209, O.S.L. 2022 (22 O.S. Supp. 2025, Section 1053), which relates to appeals taken by the state or municipality; providing clarification for certain cases taken up on appeal; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 1053, as amended by Section 2, Chapter 209, O.S.L. 2022 (22 O.S. Supp. 2025, Section 1053), is amended to read as follows:

Section 1053. Appeals to the Court of Criminal Appeals may be taken by the state or a municipality in the following cases only:

1. Upon judgment for the defendant on quashing or setting aside an indictment or information;

2. Upon an order of the court arresting the judgment;

3. Upon a question reserved by the state or a municipality;

4. Upon judgment for the defendant on a motion to quash for insufficient evidence in a felony matter;

1 5. Upon a final pretrial order, decision, or judgment:

2 a. suppressing evidence on constitutional grounds, or

3 b. excluding evidence on any other grounds,

4 where appellate review of the issue would be in the best interests
5 of justice;

6 6. Upon a final pretrial order, decision or judgment:

7 a. suppressing evidence on constitutional grounds, or

8 b. excluding evidence on any other grounds,

9 in cases alleging a violation of any of the provisions of Section
10 13.1 of Title 21 of the Oklahoma Statutes; and

11 7. Upon an order, decision or judgment finding that a defendant
12 is immune from or not subject to criminal prosecution.

13 Priority shall be given to appeals taken pursuant to paragraph
14 5, 6, or 7 of this section, and an order staying proceedings shall
15 be entered pending the outcome of the appeal.

16 SECTION 2. This act shall become effective November 1, 2026.

17 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
18 April 7, 2026 - DO PASS
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